

arbitration provision does not include “interpretation” of the contract, or disputes “arising out of,” or “relating to” the Agreement. The language specifically refers to “disputes ... with respect to performance of the contract.” Defendant cites no precedent that holds that the term “with respect to performance of the contract” is sufficient to encompass questions of statutory interpretation and independent contractor classification under federal law.

The Court has considered the scope of work in both the April 12, 2019, and May 6, 2019, agreements. While the Renewed Agreement has a more expansive scope of work, the language does not show that it covers the claims alleged in this case. Here, Plaintiff’s claims arise from rights as an alleged employee and those claims are distinct from disputes with respect to contract performance. For example, “[m]any Labor Code claims are rooted in the employment relationship but arise independently of the terms of the plaintiff’s employment contract.” (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 896, fn. 5.) The alleged “Labor Code claims do not arise out of the contract but instead are distinct from rights under the Agreements.” (*Elijahjuan, supra*, 210 Cal.App.4th 15, 24.) Similarly, FEHA claims are different than a claim regarding performance of a contract.

For the reasons discussed herein, Defendant has not shown that performance under the Agreement is at issue in this case or that the parties otherwise agreed to arbitrate matters concerning interpretation of the Agreement or agreed to arbitrate claims relating to any work performed by Plaintiff for Defendant.

Accordingly, the Motion is denied.

13. 9:00 AM CASE NUMBER: C25-01992

CASE NAME: JUSTIN WANG VS. TESLA, INC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: TESLA, INC

TENTATIVE RULING:

Appearance required to address parties intended stipulation to arbitration.

14. 9:00 AM CASE NUMBER: C25-02273

CASE NAME: LINDA WILLIAMS VS. DOES 1-50

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**

FILED BY: TENET HEALTHCARE CORPORATION

TENTATIVE RULING:

The unopposed motion by defendant Tenet Healthcare Corporation to quash the service of summons is granted for the reasons stated in the motion and supporting documents.

15. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP
*HEARING ON MOTION IN RE: REQUEST FOR PRELIMINARY INJUNCTION
FILED BY: KAPRE, KRANTI
TENTATIVE RULING:

Before the Court is plaintiffs' application for a preliminary injunction to prevent defendant from holding a foreclosure sale related to their property. Because plaintiffs have failed to demonstrate they will prevail on the merits of their complaint, the application is **denied**.

The general purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits of the action and the granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. (*Jamison v. Department of Transportation* (2016) 4 Cal.App.5th 356, 361.) A court evaluates two interrelated factors when deciding whether to issue a preliminary injunction. "The first is the likelihood that the plaintiff will prevail on the merits at trial." (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.) The second is the interim harm that the party seeking the injunction will suffer if relief is denied, compared to the harm to the opposing party if granted. (*Cohen, supra*.) While a trial court's determination is guided by a 'mix' of the potential-merit and interim-harm factors (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678), it may not grant a preliminary injunction unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (*Jamison, supra*, 4 Cal.App.5th at 362.)

On September 4, 2025, plaintiffs filed their complaint, alleging the "causes of action." The causes of action are labeled "Application for Temporary Restraining Order - C.C.P. § 526" and "Preliminary and Permanent Injunction - C.C.P. § 526, Civil Code § 29249."

A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits. (*Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623, citation omitted.) It is not, in itself, a cause of action. (*Ibid.*) Because a cause of action must exist before injunctive relief may be granted, no preliminary injunction may be granted where a complaint fails to state a cause of action. (*Ibid.*) Plaintiffs allude to their desire to obtain a loan modification or payment plan, but provide no specifics concerning entitlement to such a result. They also do not name their mortgage holder as a defendant in this action. While awaiting the hearing on this application, plaintiffs have procured more than the "30-45 days" originally sought in the complaint. Accordingly, while plaintiffs have not shown a probability of success on the merits, they have procured time to investigate options with respect to any available loss mitigation options offered by the mortgage servicer.

16. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIOIRA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: MBADIKE-OBIOIRA, MD, MAUREEN
FILED BY: